EXPRESS SCRIPTS, INC.
WITH GEN PHARMA SOLUTION, LLC

CONTRACT NUMBER: ESPH25GP01

BETWEEN

EXPRESS SCRIPTS, INC.
("PBM")
1 Express Way
St. Louis, Missouri 63121
United States
Phone: +1 314 996 0900
Fax: +1 314 996 0999

AND

GEN PHARMA SOLUTIONS, LLC
("Client" or "Plan Sponsor")
500 Corporate Drive
Boston, Massachusetts 02116
Tax ID: 20-1234567

EFFECTIVE DATE: June 7, 2025

AGREEMENT NUMBER: ES-2025-39882

EXPIRATION DATE: June 30, 2028

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1. DEFINITIONS

1.**1 "Administrative Fee"** means the fee charged by Express Scripts for processing prescription drug claims and providing administrative services, as set forth in Schedule A.

1.2 **"Agreement"** means this Pharmacy Benefit Management Services Agreement including all exhibits, schedules, and amendments.

1.3 **"Brand Drug"** means a prescription drug that is marketed under a trademark or trade name by the manufacturer or distributor.

1.4 **"Claims Processing"** means the electronic processing of prescription drug claims submitted by Participating Pharmacies.

1.5 **"Client Data"** means all data, information, and records provided by Client to Express Scripts under this Agreement.

1.6 **"Covered Prescription Drugs"** means those prescription medications and pharmaceutical products that are eligible for coverage under the Client's benefit plan as defined in Schedule B.

1.7 **"Dispensing Fee"** means the fee paid to Participating Pharmacies for dispensing prescription drugs to Members.

1.8 **"Effective Date"** means June 7, 2025.

1.9 **"Express Scripts Network"** means the network of pharmacies that have contracted with Express Scripts to provide prescription drugs to Members.

1.10 **"Formulary"** means the list of prescription drugs covered under the Client's benefit plan, as maintained and updated by Express Scripts.

1.11 **"Generic Drug"** means a prescription drug that contains the same active ingredients as a Brand Drug but is not marketed under a trademark or trade name.

1.12 **"HIPAA"** means the Health Insurance Portability and Accountability Act of 1996, as amended.

1.13 **"Mail Order Pharmacy"** means Express Scripts' mail order pharmacy facility located at 4600 Enterprise Boulevard, St. Louis, Missouri 63115.

1.14 **"Member"** means an individual who is eligible to receive benefits under the Client's benefit plan.

1.15 **"National Drug Code" or "NDC"** means the unique 11-digit number assigned to each prescription drug product.

1.16 **"Participating Pharmacy"** means a pharmacy that has entered into a network agreement with Express Scripts to provide Covered Prescription Drugs to Members.

1.17 **"Pharmacy Benefit Management Services"** means the services described in Article 3 of this Agreement.

1.18 **"Prior Authorization"** means the process by which Express Scripts reviews and approves coverage for certain prescription drugs before they are dispensed.

1.19 **"Rebate"** means payments made by pharmaceutical manufacturers to Express Scripts based on the utilization of their products by Members.

1.20 **"Specialty Drug"** means a high-cost prescription drug used to treat complex or rare medical conditions, typically requiring special handling or administration.

1.21 **"Therapeutic Interchange"** means the substitution of a therapeutically equivalent drug for another drug within the same therapeutic class.

1.22 **"Volume Tier"** means the pricing tier based on annual prescription drug volume as defined in Schedule D.

1.23 **"Wholesale Acquisition Cost" or "WAC"** means the manufacturer's list price for a prescription drug to wholesalers or direct purchasers.

2. TERM AND TERMINATION

2.1 Term

This Agreement shall commence on the Effective Date and continue for an initial period of thirty-six (36) months, unless earlier terminated as provided herein.

2.2 Renewal

This Agreement may be renewed for additional three-year terms by mutual written agreement of the parties no less than ninety (90) days prior to the expiration of the then-current term, with any modifications to terms and conditions as agreed upon.

2.3 Termination for Convenience

Either party may terminate this Agreement for any reason upon one hundred eighty (180) days prior written notice to the other party.

2.4 Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party:

2.4.1 Materially breaches any provision of this Agreement and such breach remains uncured at the end of a thirty (30) day cure period

2.4.2 Becomes insolvent or files for bankruptcy

2.4.3 Fails to maintain required licenses or certifications

2.4.4 Violates applicable laws or regulations

2.4.5 Fails to meet performance standards after 90 days notice

2.5 Effect of Termination

Upon expiration or termination of this Agreement:

2.5.1 Express Scripts shall continue processing claims for ninety (90) days

2.5.2 Client shall pay all outstanding fees and charges

2.5.3 Express Scripts shall return or destroy all Client Data

2.5.4 Both parties shall maintain confidentiality obligations & Final rebate payments shall be calculated and paid

3. SCOPE OF SERVICES

3.1 Claims Processing and Adjudication

Express Scripts shall provide real-time electronic processing of prescription drug claims submitted by Participating Pharmacies. Services include:

3.1.1 Verification of Member eligibility and benefits

3.1.2 Drug formulary and coverage determination

3.1.3 Prior authorization processing

3.1.4 Drug utilization review

3.1.5 Copayment and coinsurance calculation

3.1.6 Claims adjudication and payment processing

3.1.7 Real-time benefit verification

3.1.8 Electronic prior authorization management

3.2 Network Management

Express Scripts shall maintain and manage a comprehensive network of Participating Pharmacies to ensure adequate access for Members:

3.2.1 Retail pharmacy network with over 60,000 locations nationwide

3.2.2 Mail order pharmacy services through Express Scripts Mail Order Pharmacy

3.2.3 Specialty pharmacy network for high-cost specialty medications

3.2.4 Network quality assurance and performance monitoring

3.2.5 Geographic coverage ensuring 98% of U.S. population within 5 miles of a pharmacy

3.3 Formulary Management

Express Scripts shall develop, maintain, and administer a formulary of Covered Prescription Drugs:

3.3.1 Annual formulary review and updates

3.3.2 Generic substitution programs

3.3.3 Therapeutic interchange programs

3.3.4 Step therapy protocols

3.3.5 Quantity limit management

3.3.6 Prior authorization requirements for high-cost or specialty medications

3.4 Rebate Administration

Express Scripts shall negotiate and administer rebate agreements with pharmaceutical manufacturers:

3.4.1 Manufacturer rebate negotiations

3.4.2 Rebate collection and processing

3.4.3 Rebate pass-through to Client as specified in Schedule C

3.4.4 Quarterly rebate reporting

3.4.5 Annual rebate reconciliation

3.5 Clinical Programs

Express Scripts shall provide clinical programs designed to improve patient outcomes and reduce costs:

3.5.1 Medication therapy management (MTM)

3.5.2 Disease management programs

3.5.3 Drug utilization review and monitoring

3.5.4 Pharmacist consultation services

3.5.5 Adherence programs

3.5.6 Prior authorization management

3.6 Reporting and Analytics

Express Scripts shall provide comprehensive reporting and analytics:

3.6.1 Monthly utilization and cost reports

3.6.2 Quarterly performance scorecards

3.6.3 Annual trend analysis

3.6.4 Custom reporting as requested by Client

3.6.5 Online reporting portal access

3.6.6 Real-time dashboard analytics

4. COMPENSATION AND PAYMENT TERMS

EXHIBIT A: SERVICE FEES AND PRICING

4.1 Administrative Fees

Service Type	Fee Structure	Amount
Standard Retail Claims	Per Claim	$0.45
Mail Order Claims	Per Claim	$0.35
Specialty Pharmacy Claims	Per Claim	$0.75
Prior Authorization Requests	Per Request	$2.50
Monthly Administrative Fee	Monthly	$15,000
Setup and Implementation	One-time	$50,000

4.2 Rebate Sharing

Drug Category	Rebate Pass-Through	Minimum Annual Guarantee
Brand Drug Rebates	95% of net rebates	$1,800,000
Generic Drug Rebates	100% of net rebates	$400,000
Specialty Drug Rebates	90% of net rebates	$300,000
Vaccine Rebates	85% of net rebates	$100,000

4.3 Tier Structure and Pricing

Tier	Volume Minimum	Volume Maximum	Discount	Admin Fee	Rebate
Tier 1	$0	$250,000	10.00%	2.00%	0.00%
Tier 2	$250,000	$1,000,000	15.00%	2.00%	1.50%
Tier 3	$1,000,000	No Limit	20.00%	3.00%	3.00%
Tier 4	$1,000,000	No Limit	20.00%	3.00%	3.00%
Tier 5	$1,000,000	No Limit	20.00%	3.00%	3.00%

4.4 Product Pricing Table

Product 1: Cardiolex 10mg

Attribute	Value
NDC Number	65483-1021-30
Product Name	Cardiolex 10mg
Size	30 tablets
WAC Price	$195.00

Tier	Discount	Final Price	Savings
Tier 1	10%	$175.50	$19.50
Tier 2	15%	$165.75	$29.25
Tier 3	20%	$156.00	$39.00
Tier 4	20%	$156.00	$39.00
Tier 5	20%	$156.00	$39.00

Product 2: Cardiolex 20mg

Attribute	Value
NDC Number	65483-1022-30
Product Name	Cardiolex 20mg
Size	30 tablets
WAC Price	$275.00

Tier	Discount	Final Price	Savings
Tier 1	10%	$247.50	$27.50
Tier 2	15%	$233.75	$41.25
Tier 3	20%	$220.00	$55.00
Tier 4	20%	$220.00	$55.00
Tier 5	20%	$220.00	$55.00

4.5 Payment Terms

4.5.1 Administrative fees shall be invoiced monthly in advance

4.5.2 Rebate payments shall be made quarterly within forty-five (45) days of quarter end

4.5.3 All payments shall be made by wire transfer or ACH

4.5.4 Late payments shall incur interest at the rate of 1.5% per month

4.5.5 Payment disputes must be raised within thirty (30) days of invoice date

4.6 Cost Savings Guarantee

Express Scripts guarantees annual cost savings of at least 12% compared to Client's previous pharmacy benefit costs, measured on a per-member-per-month basis, with additional savings through the rebate program.

5. PERFORMANCE STANDARDS

5.1 Service Level Agreements

Express Scripts shall meet the following performance standards:

Performance Metric	Target	Measurement Period
Claims processing accuracy	99.5% or greater	Monthly
Average claims processing time	3 seconds or less	Daily
Customer service response time	30 seconds or less	Daily
Network availability	99.9% uptime	Monthly
Mail order delivery time	3-5 business days	Per order
Member satisfaction rating	95% minimum	Quarterly

5.2 Performance Guarantees

Express Scripts guarantee:

5.2.1 Minimum 95% Member satisfaction rating

5.2.2 Maximum 2% claim denial rate for valid claims

5.2.3 24/7 customer service availability

5.2.4 Real-time eligibility verification

5.2.5 Secure data transmission and storage

5.3 Performance Monitoring

Client shall have the right to monitor Express Scripts' performance through:

5.3.1 Monthly performance reports

5.3.2 Quarterly business reviews

5.3.3 Annual performance evaluations

5.3.4 Client satisfaction surveys

5.3.5 Real-time dashboard access

6. COMPLIANCE AND REGULATORY REQUIREMENTS

6.1 Regulatory Compliance

Both parties shall comply with all applicable federal, state, and local laws and regulations, including but not limited to:

6.1.1 HIPAA and related privacy regulations

6.1.2 Medicare and Medicaid requirements

6.1.3 State pharmacy practice laws

6.1.4 Federal anti-kickback statutes

6.1.5 Stark Law requirements

6.1.6 FDA regulations

6.1.7 State insurance regulations

6.1.8 ERISA requirements

6.2 Data Security and Privacy

Express Scripts shall implement and maintain appropriate administrative, physical, and technical safeguards to protect Client Data and Member information:

6.2.1 Encryption of data in transit and at rest

6.2.2 Access controls and authentication procedures

6.2.3 Regular security assessments and audits

6.2.4 Incident response procedures

6.2.5 Employee training and background checks

6.2.6 Multi-factor authentication requirements

6.2.7 Data loss prevention systems

6.3 Audit Rights

Client shall have the right to audit Express Scripts' records and operations:

6.3.1 Annual financial audits

6.3.2 Compliance audits as needed

6.3.3 Security assessments

6.3.4 Performance audits

6.3.5 Thirty (30) days advance written notice required for audits

6.3.6 Audit reports to be provided within sixty (60) days

7. CONFIDENTIALITY AND DATA PROTECTION

7.1 Confidential Information

Both parties agree to maintain the confidentiality of all proprietary information disclosed during the term of this Agreement. Confidential Information includes:

7.1.1 Client Data and Member information

7.1.2 Pricing and financial terms

7.1.3 Business strategies and plans

7.1.4 Technical specifications and methodologies

7.1.5 Performance data and reports

7.1.6 Rebate agreements and manufacturer contracts

7.1.7 Clinical protocols and formularies

7.2 Data Use and Disclosure

Express Scripts may use and disclose Client Data only:

7.2.1 To perform services under this Agreement

7.2.2 As required by law or regulation

7.2.3 With Client's prior written consent

7.2.4 For legitimate business purposes as permitted by applicable law

7.2.5 For quality improvement and patient safety initiatives

7.3 Data Retention

Express Scripts shall retain Client Data for the duration of the Agreement and for seven (7) years thereafter, or as required by applicable law, whichever is longer.

7.4 Data Breach Notification

Express Scripts shall notify Client within twenty-four (24) hours of any suspected or confirmed data breach involving Client Data or Member information.

7.5 Term of Confidentiality Obligations

The obligations of confidentiality set forth in this Section 7 shall survive the expiration or termination of this Agreement for a period of five (5) years.

8. INDEMNIFICATION AND LIABILITY

8.1 Express Scripts Indemnification

Express Scripts shall indemnify, defend, and hold harmless Client from and against any claims, damages, or expenses arising from:

8.1.1 Express Scripts' breach of this Agreement

8.1.2 Express Scripts' negligence or willful misconduct

8.1.3 Express Scripts' violation of applicable laws or regulations

8.1.4 Infringement of third-party intellectual property rights

8.1.5 Data breaches caused by Express Scripts' systems

8.2 Client Indemnification

Client shall indemnify, defend, and hold harmless Express Scripts from and against any claims, damages, or expenses arising from:

8.2.1 Client's breach of this Agreement

8.2.2 Client's negligence or willful misconduct

8.2.3 Client's violation of applicable laws or regulations

8.2.4 Errors or omissions in Client Data

8.2.5 Client's failure to maintain required licenses

8.3 Limitation of Liability

Neither party's liability shall exceed the total fees paid by Client to Express Scripts in the twelve (12) months preceding the event giving rise to liability, except for:

8.3.1 Breaches of confidentiality obligations

8.3.2 Indemnification obligations

8.3.3 Willful misconduct or gross negligence

8.3.4 Data breach damages

8.4 Exclusion of Certain Damages

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF BUSINESS, OR LOSS OF GOODWILL, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9. FORCE MAJEURE

9.1 Force Majeure Events

Neither party shall be liable for delays or failures in performance due to circumstances beyond their reasonable control, including:

9.1.1 Natural disasters

9.1.2 Acts of war or terrorism

9.1.3 Government actions or regulations

9.1.4 Labor disputes or strikes

9.1.5 System failures or cyber attacks

9.1.6 Pandemics or public health emergencies

9.1.7 Supply chain disruptions

9.2 Notice and Mitigation

The affected party shall provide prompt written notice of any force majeure event and use reasonable efforts to mitigate the effects of such event.

9.3 Continuation of Services

During force majeure events, Express Scripts shall continue to provide essential services to the extent reasonably possible.

10. DISPUTE RESOLUTION

10.1 Informal Resolution

The parties shall attempt to resolve any disputes through good faith negotiations between designated representatives.

10.2 Mediation

If informal resolution fails within thirty (30) days after the dispute is first raised, disputes shall be submitted to mediation before a mutually agreed mediator.

10.3 Arbitration

If mediation fails within sixty (60) days after the commencement of mediation, disputes shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association.

10.4 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflict of laws principles.

10.5 Jurisdiction

Any legal proceedings shall be conducted in the courts of Delaware, and both parties consent to the jurisdiction of such courts.

11. GENERAL PROVISIONS

11.1 Entire Agreement

This Agreement, together with its schedules and exhibits, constitutes the entire understanding between the parties and supersedes all prior agreements and understandings.

11.2 Amendments

No amendment or modification of this Agreement shall be valid unless in writing and signed by both parties.

11.3 Assignment

Neither party may assign its rights or obligations under this Agreement without the prior written consent of the other party, except that Express Scripts may assign to an affiliate or successor entity.

11.4 Notices

All notices shall be in writing and delivered to the addresses specified in this Agreement by certified mail, overnight delivery, or email with confirmation.

11.5 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

11.6 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one agreement.

11.7 Survival

The provisions of Articles 7, 8, and 10 shall survive termination of this Agreement.

11.8 Electronic Signatures

This Agreement may be executed using electronic signatures, which shall have the same legal effect as handwritten signatures.

11.9 Independent Contractors

The relationship between the parties is that of independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or other relationship between the parties.

11.10 No Third-Party Beneficiaries

This Agreement is for the sole benefit of the parties and their respective successors and permitted assigns, and nothing in this Agreement, express or implied, is intended to or shall confer upon any other person or entity any legal or equitable right, benefit, or remedy of any nature whatsoever.

11.11 Waiver

No waiver by either party of any provision of this Agreement shall be effective unless explicitly set forth in writing and signed by the party so waiving. No waiver by either party shall operate or be construed as a waiver in respect of any failure, breach, or default not expressly identified by such written waiver.

12. NETWORK PHARMACIES

EXHIBIT B: PARTICIPATING PHARMACY NETWORK

Express Scripts maintains a comprehensive network of over 60,000 participating pharmacies nationwide, including:

12.1 Retail Pharmacy Network

12.1.1 National chain pharmacies

12.1.2 Independent community pharmacies

12.1.3 Regional pharmacy chains

12.1.4 Specialty pharmacy locations

12.2 Mail Order Pharmacy

12.2.1 Express Scripts Mail Order Pharmacy

12.2.2 4600 Enterprise Boulevard

12.2.3 St. Louis, Missouri 6311

12.3 Specialty Pharmacy Network

12.3.1 Accredo Specialty Pharmacy

12.3.2 Other contracted specialty pharmacy providers

12.4 Network Coverage Geographic coverage ensuring 98% of U.S. population within 5 miles of a participating pharmacy

13. PAYMENT INSTRUCTIONS

EXHIBIT C: PAYMENT INSTRUCTIONS

PAYEE: EXPRESS SCRIPTS, INC.

CONTRACT NUMBER: ESPH25GP01

PRODUCT CATEGORY: Pharmacy Benefit Management Services

All wires should be setup as follows:

Beneficiary: EXPRESS SCRIPTS, INC.

Beneficiary Bank: U.S. Bank National Association
Corporate Banking Office
800 Nicollet Mall
Minneapolis, MN 55402

Beneficiary Account: #4521-789456

Bank ABA: 091000022

Memo Line: Include contract number(s) and period covered

Checks should be made payable to "Express Scripts, Inc." and sent to the following address:

EXPRESS SCRIPTS, INC.
("PBM")
Accounts Receivable Department
1 Express Way
St. Louis, Missouri 63121
Tax ID: 43-1420563

Note: Please include on Memo Line the contract number(s) and period covered

14. SIGNATURES

EXPRESS SCRIPTS, INC.

By: _____

Name: **Timothy C. Wentworth**

Title**: President and CEO**

Date: _____

By: _____

Name: **Jennifer L. Martinez**

Title: **Chief Financial Officer**

Date: _____

GEN PHARMA SOLUTIONS, LLC

By: _____

Name: **Sarah M. Johnson**

Title: **Chief Executive Officer**

Date: _____

By: _____

Name**: Michael R. Chen**

Title**: Chief Operating Officer**

Date: _____